

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dillon Bezeherntny	Team: Squad #11	CCRB Case #: 202205647	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 08/18/2022 12:15 AM, Thursday, 08/18/2022 12:37 AM	Location of Incident: 55-43 Myrtle Avenue 104th Precinct Stationhouse	18 Mo. SOL 2/18/2024	Precinct: 104		
Date/Time CV Reported Fri, 08/26/2022 7:11 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/26/2022 7:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jason Ciota	02831	951615	104 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Arturo Martinez	08503	966191	104 PCT
2. DT3 Michael Giallanza	01375	957622	072 DET
3. PO Nicholas Pascone	17154	971601	072 PCT
4. PO Salvatore Devito	11193	970486	072 PCT
5. PO Malik Claybrooks	06821	965000	104 PCT
6. PO Gerard Lyle	27764	972077	104 PCT
7. PO Sung Kim	27986	950683	104 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Jason Ciota	Discourtesy: Sergeant Jason Ciota spoke discourteously to § 87(2)(b) at 55-43 Myrtle Avenue in Queens.	A . Substantiated
B . SGT Jason Ciota	Force: Sergeant Jason Ciota used physical force against § 87(2)(b) at 55-43 Myrtle Avenue in Queens.	B . Unfounded
C . SGT Jason Ciota	Force: Sergeant Jason Ciota used physical force against § 87(2)(b) at 55-43 Myrtle Avenue in Queens.	C . Unfounded
D . SGT Jason Ciota	Abuse: Sergeant Jason Ciota seized § 87(2)(b) property at 55-43 Myrtle Avenue in Queens.	D . Substantiated
E . SGT Jason Ciota	Discourtesy: Sergeant Jason Ciota spoke discourteously to § 87(2)(b) at the 104th Precinct Stationhouse.	E . Substantiated

Case Summary

On August 26, 2022, § 87(2)(b) filed this complaint online with CCRB on behalf of herself and her son, § 87(2)(b).

At about 12:15 a.m. on August 18, 2022, officers observed § 87(2)(b) car parked in a no parking area. Police Officer Arturo Martinez of the 104th Precinct requested § 87(2)(b) ID, at which time § 87(2)(b) offered it to Sergeant Jason Ciota of the 104th Precinct, who in turn stated, “Did I fuckin’ ask for it?” Sergeant Ciota later told § 87(2)(b) “You don’t do the shit you’re doing you won’t get pulled over.” When § 87(2)(b) paraphrased Sgt. Ciota’s words incorrectly, Sgt. Ciota told § 87(2)(b) “It’s not the same shit.” Sgt. Ciota also told § 87(2)(b) regarding a probable cause I-CARD for his arrest, “If it’s bullshit then we let you go” (**Allegation A: Discourtesy, substantiated**). As § 87(2)(b) was being placed in the rear of an RMP, § 87(2)(b) arrived on scene. Sgt. Ciota allegedly pushed § 87(2)(b) (**Allegation B: Force, unfounded**). § 87(2)(b) allegedly saw Sgt. Ciota punch § 87(2)(b) in his ribs (**Allegation C: Force, unfounded**). As § 87(2)(b) was taken back to the 104th Precinct stationhouse to process his arrest, PO Malik Claybrooks, of the 104th Precinct, drove the car back to the stationhouse (**Allegation D: Abuse of Authority, substantiated**). While at the stationhouse, Sgt. Ciota told § 87(2)(b) “We’re gonna figure this shit out” (**Allegation E: Discourtesy, substantiated**).

From the 104th Precinct stationhouse, § 87(2)(b) was transported to the 72nd Precinct stationhouse for processing of arrest § 87(2)(b) in regarding I-Card § 87(2)(b) itself regarding criminal complaint report § 87(2)(b).

On September 15, 2022, CCRB received TARU footage related to the incident.

On September 19, 2022, CCRB received comprehensive body-worn camera video from NYPD Legal from the following officers: Police Officer Martinez, Police Officer Claybrooks, Sergeant Ciota, Police Officer Sung Kim, Police Officer Lyle, Police Officer Salvatore Devito, and Police Officer Nicholas Pascone.

Findings and Recommendations

Allegation (A) Discourtesy: Sergeant Jason Ciota spoke discourteously to § 87(2)(b)

Sgt. Ciota’s BWC (**Board Review 01**) starts at 00:14:26 and ends at 00:28:03. It has audio, is in color, and the timestamps appear to be accurate. Audio clearly captures Sgt. Ciota issuing the following statements directly to § 87(2)(b) “Did I fuckin’ ask for it” at durational timestamp 01:33, “You don’t do the shit you’re doing you won’t get pulled over” at 01:55, “It’s not the same shit” at 02:50, and “If it’s bullshit then we let you go” at 06:40. BWC also captures § 87(2)(b) making derogatory remarks towards officers and cursing at officers, calling them “hos” and “faggots” consistently throughout the encounter.

§ 87(2)(b) (**Board Review 02**) did not allege that officers used profanity with her or § 87(2)(b).

Sgt. Ciota (**Board Review 03**) reviewed his and PO Claybrooks’ BWC, acknowledging he made the following statements: “Did I fuckin’ ask for it,” “You don’t do the shit you’re doing you won’t get pulled over,” “It’s not the same shit,” “If it’s bullshit then we let you go,” and “We’re gonna figure this shit out.” Sgt. Ciota stated that his only reason for using profanity with § 87(2)(b) was that he wanted to speak to § 87(2)(b) in a way that § 87(2)(b) would understand. Since § 87(2)(b) himself was consistently using profanity, Sgt. Ciota stated he thought he could

communicate more effectively with § 87(2)(b) and keep the interaction from escalating by speaking in a similar manner without directing the language at § 87(2)(b)

Officers must interact with members of the public in a professional manner Administrative Guide Procedure 304-11 (Board Review 04). DCT Case Number 79627/04 (Board Review 05) found that officers' use of profanity is not considered actionable misconduct when the profanity is used to maintain control of a stressful situation.

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Force: Sergeant Jason Ciota used physical force against § 87(2)(b) at 55-43 Myrtle Avenue in Queens.

Allegation (C) Force: Sergeant Jason Ciota used physical force against § 87(2)(b) at 55-43 Myrtle Avenue in Queens.

Sgt. Ciota's BWC (**Board Review 01**) does not depict Sgt. Ciota pushing § 87(2)(b) or striking § 87(2)(b). At durational timestamp 11:14, Sgt. Ciota lightly touches just above § 87(2)(b) left elbow as he tells her to move back. § 87(2)(b) had begun walking backwards prior to the touch and she does not appear to have any physical reaction to it. At durational timestamp 11:57, Sgt. Ciota and PO Claybrooks each use both of their hands to hold § 87(2)(b) in the rear of an RMP as he attempts to exit it, fully getting his head and shoulders out of the car. Sgt. Ciota audibly tells § 87(2)(b) to sit down in the car no less than twice.

§ 87(2)(b) (**Board Review 02**) stated that Sgt. Ciota used one hand on her chest to push her back, causing her to stumble backwards into a tree. Sgt. Ciota told § 87(2)(b) she was getting too close to the officers as he pushed her. § 87(2)(b) later saw Sgt. Ciota strike § 87(2)(b) under his rib as he was in the back seat of the RMP.

§ 87(2)(b) was uncooperative with this investigation.

Sgt. Ciota (**Board Review 03**) stated that neither he, nor any other officer, struck § 87(2)(b). Sgt. Ciota acknowledged he may have placed his hand on § 87(2)(b) shoulder while asking her to step back onto the sidewalk.

PO Claybrooks (**Board Review 06**) stated that he never struck § 87(2)(b) or saw any other officer strike § 87(2)(b).

PO Martinez (**Board Review 07**) never saw an officer strike § 87(2)(b). PO Martinez stated that he never personally struck § 87(2)(b).

At 11:14, Sgt. Ciota's BWC (**Board Review 01**) captures Sgt. Ciota gently raising his right hand just above § 87(2)(b) elbow, lightly prodding her as he tells her to get back. While there does seem to be light physical contact between Sgt. Ciota and § 87(2)(b), § 87(2)(b) has no apparent reaction to the contact and does not stumble backwards into a tree as she alleged. The contact as

alleged does not occur in BWC, which is comprehensive. Regarding the allegation Sgt. Ciota struck § 87(2)(b) in his rib area, Sgt. Ciota's BWC again captures physical contact of some kind as § 87(2)(b) tries to exit the rear of the RMP he was previously seated in. However, contact is limited to holding § 87(2)(b) back such that he cannot exit the vehicle and is accompanied by commands that § 87(2)(b) sit down in the RMP. Sgt. Ciota, PO Martinez, and PO Claybrooks were all consistent in stating that neither of them either struck, or saw any other officer strike, § 87(2)(b).

Sgt. Ciota's BWC, which is comprehensive as it pertains to the allegations that Sgt. Ciota pushed § 87(2)(b) and struck § 87(2)(b) clearly does not depict the allegations § 87(2)(g). It is recommended that **Allegation B** and **Allegation C** be closed as **unfounded**.

Allegation (D) Sergeant Jason Ciota seized § 87(2)(b) property at 55-43 Myrtle Avenue in Queens.

At durational timestamp 13:05, Sgt. Ciota's BWC (**Board Review 01**) captures him telling PO Claybrooks, who is standing next to the front driver-side door of the vehicle § 87(2)(b) was driving, to "go back to the precinct." PO Claybrooks gets in the driver's seat of the car. At 13:13, § 87(2)(b) tells Sgt. Ciota and PO Claybrooks that the vehicle PO Claybrooks has just entered is under her name. Sgt. Ciota points to the vehicle and says, "This one?" § 87(2)(b) responds, "Yes." Sgt. Ciota says, "Okay." § 87(2)(b) leans toward her vehicle where PO Claybrooks is beginning to inch forward and away from the curb and says, "The car is under my name. The insurance is under my name." PO Claybrooks drives away. Sgt. Ciota tells § 87(2)(b) "Well, § 87(2)(b) was driving it." § 87(2)(b) tells Sgt. Ciota that it does not matter who was driving it because it is her vehicle. Sgt. Ciota responds, "Okay, have a good night," then gets into a police vehicle and leaves the scene. Officers do not take any steps to verify the owner of § 87(2)(b) vehicle.

§ 87(2)(b) (**Board Review 02**) stated that she told officers numerous times that the black Honda Civic § 87(2)(b) had been driving was under her name. No officer gave her a chance to prove that she was the rightful owner; instead, an officer drove the car back to the 104th Precinct stationhouse. § 87(2)(b) retrieved her vehicle from the stationhouse later that night.

Sgt. Ciota (**Board Review 03**) stated that, as per standard procedure, § 87(2)(b) vehicle was taken back to the stationhouse given that § 87(2)(b) was arrested, and the car was in his possession at the time. Sgt. Ciota stated that officers would typically verify the rightful owner of the vehicle later at the stationhouse and then release it to that person.

PO Claybrooks (**Board Review 06**) drove § 87(2)(b) vehicle after being ordered to do so by Sgt. Ciota.

When conducting an arrest, officers must have a vehicle or other conveyance safeguarded, if appropriate Patrol Guide Procedure 208-03 (**Board Review 08**).

Though Sgt. Ciota stated that he instructed PO Claybrooks to take § 87(2)(b) vehicle back to the stationhouse because it is standard procedure to seize and voucher the vehicle an arrestee was operating at the time of their arrest, PG 208-03 notes officers are only to seize and voucher a vehicle if it is appropriate under the circumstances. In this case, § 87(2)(b) was being arrested on an open I-Card for violation of an order or protection, § 87(2)(g).

§ 87(2)(b) Sgt. Ciota's BWC shows that § 87(2)(b) told him that the car being seized, and its insurance were both under her name, and that Sgt. Ciota acknowledged this information before PO Claybrooks drove her vehicle

away from the scene. § 87(2)(b) testified, and Sgt. Ciota's BWC shows, that no officer took any action to verify the ownership of her vehicle on scene. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **substantiated**.

Allegation (E) Discourtesy: Sergeant Jason Ciota spoke discourteously to § 87(2)(b) at the 104th Precinct Stationhouse.

PO Claybrooks' BWC (**Board Review 09**) starts at 00:14:27 and ends at 00:37:56. The video is 23 minutes and 29 seconds long. It has audio, is in color, and the timestamps appear to be accurate. Audio clearly captures Sgt. Ciota telling § 87(2)(b) "We're gonna figure this shit out" at durational timestamp 22:38.

Sgt. Ciota (**Board Review 02**) stated his reason for every instance he used profanity during this incident was the same: he felt he could prevent the interaction from escalating by communicating in a way § 87(2)(b) could understand since § 87(2)(b) himself was consistently using profanity. Officers must interact with members of the public in a professional manner Administrative Guide Procedure 304-11 (**Board Review 04**). DCT Case Number 79627/04 (**Board Review 05**) found that officers' use of profanity is not considered actionable misconduct when the profanity is used to maintain control of a stressful situation.

While the location at which Sgt. Ciota used profanity changed, the circumstances in which he used profanity are identical to that of Allegation A.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 10**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 11**).
- Sergeant Jason Ciota has been a member-of-service for ten years and this is the first CCRB complaint to which he has been a subject (**Board Review 12**).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 24, 2022, CCRB has no indication of a notice of claim being filed regarding this incident. The undersigned submitted FOIL requests – § 87(2)(b) on October 20, 2022, § 87(2)(b) on October 24, 2022 – to the New York City Office of the Comptroller. The results have not yet been received but will be uploaded to the digital casefile upon receipt (**Board Review 13**; **Board Review 14**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 12

Investigator: Dillon Bezehertny Investigator Bezehertny 10/16/2023
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 10/18/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date